

Warsaw, December 15, 2022

Decision

DKE.523.41.2021

Based on Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000) and Article 160 paragraphs 1 and 2 of the Act on the Protection of Personal Data of May 10, 2018 (Journal of Laws of 2019, item 1781) in connection with Article 12 point 2, Article 22, Article 23 paragraph 1, Article 32 paragraph 1, and Article 33 paragraph 1 of the Act of August 29, 1997 on the Protection of Personal Data (Journal of Laws of 2016, item 922 as amended), as well as Article 57 paragraph 1 letters a) and f) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016 on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), after conducting administrative proceedings regarding the complaint of Mr. C. S., residing in (...), S., concerning the processing of his personal data by L. Sp. z o.o. based in W. at ul. (...), the President of the Personal Data Protection Office

terminates the proceedings.

Justification

On November 22, 2017, a complaint was submitted to the Office of the General Inspector for Personal Data Protection (currently: the Personal Data Protection Office) by Mr. C. S., residing in (...), S., hereinafter referred to as the "Complainant," regarding the processing of his personal data by L. Sp. z o.o. based in W. at (...) (currently: in W. at ul. (...)), hereinafter referred to as the "Company." The Complainant stated that the Company "sends spam to [his] email address informing that he has allegedly consented to this." Attached to the complaint, the Complainant provided copies of two emails – dated November 20 and 22, 2017 – sent to the email address (...), containing commercial information. In connection with the presented situation, the Complainant requested "to cause the cessation of data processing and a written notification (scan of the document) of when he allegedly consented to this."

During the administrative proceedings conducted in this matter, the President of the Personal Data Protection Office (formerly the General Inspector for Personal Data Protection), hereinafter also referred to as the "President of UODO," established the following:

Factual Background

On October 30, 2017, the Company entered into a "Cooperation Agreement (...)" with Ms. K. P., conducting business under the name S. with its registered office in the town of R. (NIP (...)), hereinafter referred to as the "Entrepreneur," represented by Mr. T. P. – the editor-in-chief of the online magazine "(...)." The subject of the aforementioned cooperation agreement was – according to its content – "cooperation in the provision by the Partner [Entrepreneur] to third parties (clients of L.) of advertising services, in particular email campaigns, using Databases and personal data of Users and IT solutions and tools owned by L." In the agreement, the Entrepreneur declared that he holds rights to the databases containing personal data (in the scope of email addresses) of users belonging to his websites (...), (...), (...) and (...), and in relation to this data, the Entrepreneur is the data controller within the meaning of the Act of August 29, 1997 on the Protection of Personal Data (Journal of Laws of 2016, item 922 as amended), hereinafter referred to as "u.o.d.o. 1997." At the same time, the Entrepreneur stated in the agreement that the personal data subject to the agreement "is processed in accordance with applicable legal provisions" and that "it was obtained electronically through a double opt-in procedure, and Users were informed about the fact of collecting and the purpose of processing their personal data and about their rights and the form of access, correction, and deletion in accordance with the Act [u.o.d.o. 1997]."

In execution of the aforementioned agreement, the Entrepreneur transferred to the Company the personal data contained in the databases he possessed, including the personal data of the Complainant regarding his email address – (...).

On November 20, 2017, the Company sent to the Complainant (to his email address (...)) a commercial information regarding the products of T. Sp. z o.o. based in W. On November 22, 2017, the Company sent to the Complainant (also to his email address (...)) a commercial information regarding the products of I. Ltd based in D. (...).

On November 22, 2017, the Complainant filed a complaint with the Office of the General Inspector for Personal Data Protection (currently the Personal Data Protection Office) regarding the processing of his personal data by the Company (see point 1 of the justification of this decision). The Complainant informed the Company electronically about the submission of the complaint to the supervisory authority regarding the processing of his personal data by the Company. During the correspondence initiated by this information, the Complainant formulated his expectations towards the Company; specifically, he demanded in an email dated December 2, 2017, the cessation of the processing of his personal data by the Company and the deletion of his personal data from the Company's database and from the portal.

in a manner that violates the law (request based on Article 32(1)(6) of the Personal Data Protection Act of 1997), as well as to be provided with information about the source from which the Company obtained his personal data (request based on Article 33(1) of the Personal Data Protection Act of 1997).

In an email dated November 30, 2017, the Company informed the Complainant about the deletion of his personal data (specifically the email address) from its database. In the same message, the Company indicated that it is not the administrator of the Complainant's personal data; the administrator is "the owner of the service (...) and the services of the entire group for which the Company carries out advertising activities."

On November 25, 2017, the Complainant directed his requests (analogous to the request submitted to the Company – see point 8 of the justification of this decision) to the Entrepreneur – the administrator of his personal data, namely the administrator of the service (...) - Ms. K. P., conducting business under the name "S," represented by Mr. T. P. The request was sent electronically to the email address (...).

The Complainant's personal data, specifically his email address, was deleted by the Entrepreneur from the database used by the Company for marketing activities on November 26, 2017.

After reviewing all the evidence gathered in the case, the President of the Personal Data Protection Office considered the following.

Legal Provisions

According to Article 34(1) of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781), hereinafter referred to as "the Personal Data Protection Act of 2018," the President of the Personal Data Protection Office is the competent authority in matters of personal data protection. As stated in Article 34(2) of the Personal Data Protection Act, the President of the Personal Data Protection Office is the supervisory authority within the meaning of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of individuals with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (Journal of the EU L 119 of 04.05.2016, p. 1, with amendments published in Journal of the EU L 127 of 23.05.2018, p. 2, and in Journal of the EU L 74 of 04.03.2021, p. 35), hereinafter referred to as "Regulation 2016/679."

Pursuant to Article 57(1) of Regulation 2016/679, without prejudice to other tasks specified under this regulation, each supervisory authority in its territory (the President of the Personal Data Protection Office in the territory of the Republic of Poland) monitors and enforces the application of this regulation (lit. a) and considers complaints lodged by the data subject or by a person authorized by them – in accordance with Article 80 of Regulation 2016/679 – organization or association, and to the appropriate extent conducts proceedings regarding these complaints and informs the complainant of the progress and results of these proceedings within a reasonable time (lit. f).

According to Article 104 § 1 and 2 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000), hereinafter referred to as "the Code of Administrative Procedure," which legal act – pursuant to Article 160(2) of the Personal Data Protection Act of 2018 – applies in this proceeding, the President of the Personal Data Protection Office, as a public administration authority, resolves the matter (including considering complaints lodged by individuals whose data is concerned) by issuing decisions that resolve the matter in its entirety or in part or otherwise conclude the matter.

According to Article 105 § 1 of the Code of Administrative Procedure, when the proceedings have become moot in whole or in part for any reason, the President of the Personal Data Protection Office issues a decision to discontinue the proceedings accordingly in whole or in part.

Regulation 2016/679 has been applicable since May 25, 2018 (Article 99(2) of Regulation 2016/679); on the same day, the Personal Data Protection Act of 2018 came into force (Article 176 of the Personal Data Protection Act).

Before May 25, 2018, the rules for processing personal data and the rights of individuals whose personal data were or could be processed in data sets were governed by the Personal Data Protection Act of 1997. As of May 25, 2018, the Office of the General Inspector for Personal Data Protection became the Personal Data Protection Office. Proceedings conducted by the General Inspector for Personal Data Protection (hereinafter "GIODO"), initiated and not concluded before May 25, 2018, are conducted by the President of the Personal Data Protection Office, based on the Personal Data Protection Act of 1997, in accordance with the principles specified in the Code of Administrative Procedure. All actions taken by GIODO before May 25, 2018, remain effective (Article 160(1)–(3) of the Personal Data Protection Act of 2018).

According to the wording of Article 23(1) of the Personal Data Protection Act of 1997 (in force until May 25, 2018), the processing of personal data was permissible when: the person to whom the data related consented to it, unless it concerned the deletion of data relating to them (point 1), it was necessary for the realization of a right or the fulfillment of an obligation arising from a legal provision (point 2), it was necessary for the performance of a contract when the person to whom the data related was a party to it or when it was necessary to take actions before concluding a contract at the request of the person to whom the data related (point 3), it was necessary for the performance of specific tasks defined by law carried out for the public good (point 4), it was necessary for the fulfillment of legally justified purposes pursued by data controllers or data recipients, and the processing did not violate the rights and freedoms of the person to whom the data related (point 5).

According to Article 32(1) of the Personal Data Protection Act of 1997, every person had the right to control the processing of data concerning them contained in data sets, and in particular the right to request the completion, updating, correction of personal data, temporary or permanent suspension of their processing or their deletion if they were incomplete, outdated, untrue, or collected in a manner that violates the law.

with a violation of the law or were no longer necessary for the realization of the purpose for which they were collected (Article 32(1)(6) of the Personal Data Protection Act of 1997).

According to Article 33(1) in conjunction with Article 32(1)(3) and (4) of the Personal Data Protection Act of 1997, at the request of the person to whom the data pertains, the data controller was obliged to provide that person with information, among others, about the source from which the data concerning them originated and from when these data had been processed in the data set.

Legal Assessment

As follows from the wording of Articles 160(1)–(3) of the Personal Data Protection Act of 2018 (see point 18 of the justification of this decision), the present proceedings, initiated on November 22, 2017 (the date of receipt of the complaint by the Inspector General for Personal Data Protection), and not concluded before May 25, 2018, are conducted on the basis of the Personal Data Protection Act of 1997 (in the scope concerning the provisions regulating the procedure of proceedings) and on the

basis of Regulation 2016/679 (in the scope determining the legality and compliance of the process of personal data processing). The manner of conducting proceedings resulting from legal provisions in cases initiated and not concluded before the entry into force of the new regulations on personal data protection corresponds with the case law and established position of doctrine, according to which “[...] the public administration authority assesses the factual state of the case at the moment of issuing the administrative decision. This rule also applies to the assessment of the legal state of the case, which means that the public administration authority issues an administrative decision based on the legal provisions in force at the time of its issuance” (A. Wróbel [in:] M. Jaśkowska, M. Wilbrandt-Gotowicz, A. Wróbel, Updated Commentary to the Code of Administrative Procedure, LEX/el. 2022, Article 104). The Supreme Administrative Court confirmed this position in its judgment of October 4, 2000, in case file V SA 283/00 (Lex No. 50110): “The provisions of the Code of Administrative Procedure do not bind the factual and legal basis for the examination of the case to the date of initiation of the proceedings. The state in force at the date of the decision is decisive in this respect.”

In its judgment of May 7, 2008, issued in case file I OSK 761/07 (Legalis No. 138727), the Supreme Administrative Court stated that “when examining the legality of the processing of personal data, the Inspector General for Personal Data Protection is obliged to determine whether, as of the date of issuing the decision in the matter, the data of a specific entity are being processed and whether this is done in a lawful manner.”

From the above, it follows that, in the first instance, in every case examined by him, the President of the Office for Personal Data Protection should investigate whether at the moment of issuing the administrative decision the data controller or the processor is processing the personal data of the party; in other words, whether there exists a subject of the proceedings which – in the event of initiating proceedings at the request of the party – is delineated by the content of the request submitted by that party. Establishing the existence of the subject of the proceedings allows for further determination regarding the legality of the processing, that is, the existence of at least one of the legal bases for processing listed in Article 6(1) and Article 9(2) of Regulation 2016/679 (and in cases concluded before May 25, 2018 – in Article 23(1) of the Personal Data Protection Act of 1997), as well as regarding the compliance of this processing with the provisions on personal data protection.

As noted by the Provincial Administrative Court in Warsaw in its judgment of April 6, 2018, issued in case file VII SA/Wa 1463/17 (Legalis No. 1789450): “According to the content of the mentioned provision [Article 61 § 1 of the Code of Administrative Procedure], the request for the initiation of administrative proceedings defines the subject of that proceeding [...]. Therefore, in the case of initiating proceedings on the basis of a complaint (at the request of a party), the type of case and its subject are defined by the content of the submitted request [...]. In the established case law of administrative courts, based on the aforementioned provisions, it is accepted that in the case of initiating proceedings at the request of a party, the content of the submitted request defines the type of case that is the subject of the proceedings, and also determines the relevant norm of substantive or procedural law that will be relevant for determining the subjective and objective scope of the proceedings. The administrative authority is bound by that request, as only and exclusively the party submitting the application defines the subject of its request and disposes of it. In other words, this request (application) of the party delineates the boundaries of the administrative case to be resolved in the given administrative proceedings.”

In this case, the Complainant requested the Inspector General for Personal Data Protection, firstly, to cause the cessation of the processing of his personal data by the Company, and secondly, to provide him with information about when (“allegedly”) he consented to the processing of his personal data by the Company (see point 1 of the justification of this decision). Both requests were directed by the Complainant to the Company, which, in the process of processing the Complainant's personal data – as established based on the explanations of the Company and the Entrepreneur and the copy of the contract presented by the Company connecting it with the Entrepreneur (see points 2 and 3 of the justification of this decision) – was the entity to which the Entrepreneur entrusted the processing of data in accordance with Article 31 of the Personal Data Protection Act of 1997.

Regarding the request to cease the processing of the Complainant's personal data by the Company, it should be noted that the Company deleted this data (the Complainant's email address) from its database immediately after receiving the Complainant's request – no later than November 30, 2017, when it informed the Complainant by email about fulfilling his request (see point 9 of the justification of this decision). Thus, upon the deletion of the Complainant's data, the Company ceased processing them. Additionally, although such a request was not covered by this...

proceedings (limited request of the Complainant directed only to the Company; not to the Entrepreneur), the personal data of the Complainant was also deleted by the Entrepreneur, that is, the administrator of his personal data (see points 10 and 11 of the justification of this decision).

Regarding the request for information to be provided to the Complainant about when he allegedly expressed consent for the processing of his personal data by the Company, it should be noted that the Company informed the Complainant that it does not possess such information, and the appropriate entity to provide such information is the data administrator, "which is the owner of the service (...) and the services of the entire group, for which the Company carries out advertising activities" (the Entrepreneur).

At this point, it should be noted that the Company, as the entity entrusted with data processing based on Article 31 of the Personal Data Protection Act, was not, under the regulations in force until May 25, 2018, the appropriate addressee of such a request. According to Article 33(1) of the Personal Data Protection Act of 1997 (see point 21 of the justification of this decision), it was the data administrator (the Entrepreneur) who bore the obligation to provide the person concerned with the information referred to in Article 32(1)(1-5a) of the Personal Data Protection Act of 1997.

Therefore, since the subject of these proceedings, delineated by the content of the Complainant's requests, has ceased to exist (in terms of the request to cease processing the Complainant's personal data – at the moment of their deletion by the Company – see point 27 of the justification of this decision) or did not exist from the moment of initiating the proceedings (in terms of the request to provide the Complainant with information about the moment of expressing consent for the processing of his data by the Company – see point 28 of the justification of this decision), it should be concluded that the current proceedings are moot. There is, in fact, no subject matter of the case requiring a substantive resolution.

The finding of the mootness of the proceedings in this case aligns with the position of doctrine and the jurisprudence of administrative courts presented below (see point 30 of the justification of this decision).

"Mootness of administrative proceedings, as stated in Article 105 § 1, means that one of the elements of the material legal relationship is missing, and therefore it is not possible to issue a decision resolving the matter by deciding on its substance. The premise for discontinuing the proceedings may exist even before the proceedings are initiated, which will only be revealed in the ongoing proceedings, and it may also arise during the course of the proceedings, thus in a case already pending before the public administration authority (B. Adamiak, J. Borkowski, Administrative Procedure Code. Commentary. Commentary on Article 105. 18th ed., Warsaw 2022). The same position was taken by the Provincial Administrative Court in Krakow in its judgment of February 27, 2008, case file III SA/Kr 762/07 (Lex No. 977686), stating: "Proceedings become moot when one of the elements of the material legal relationship is missing, which means that it is not possible to resolve the matter by deciding on its substance." Furthermore, the Supreme Administrative Court in its judgment of November 20, 2019, case file I OSK 2897/18 (Lex No. 2865859) ruled: "The term 'the proceedings have become moot for any reason' encompasses situations where the party's request is outdated or has expired by operation of law. One can therefore speak of the mootness of the proceedings when there is a lack of its party or a lack of subject matter, that is, when there are no legal and factual grounds for considering and resolving the case."

According to Article 105 of the Administrative Procedure Code, when the proceedings have become moot for any reason in whole or in part, the public administration authority issues a decision to

discontinue the proceedings accordingly in whole or in part. The wording of the cited provision leaves no doubt that in the event of establishing the mootness of the proceedings, the authority conducting the proceedings is obliged to discontinue them. "Establishing the existence of this premise creates an obligation to conclude the proceedings at a given instance by its discontinuation, as there will then be no grounds for resolving the matter on its substance. Continuing the proceedings in such a case would indicate its defectiveness, which has a significant impact on the outcome of the case" (B. Adamiak, J. Borkowski, Administrative Procedure Code. Commentary. Commentary on Article 105. 18th ed., Warsaw 2022).

In this factual and legal situation, the President of the Office for Personal Data Protection decided as stated in the operative part of the decision.

Instruction

Based on Article 127 § 3 of the Administrative Procedure Code, the party has the right to submit a request for reconsideration of the case within 14 days from the date of its delivery to the party. If the party does not wish to exercise the right to submit a request for reconsideration of the case, it has the right to file a complaint against the decision to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery. The complaint is submitted through the President of the Office for Personal Data Protection (address: ul. Stawki 2, 00-193 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for legal aid, including exemption from court fees.

Print article

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